

No.	Sumas not exceeding		SCH. (B.) PART 14. Revenue Departments, &c.
	Supply Grants.	Appropriations in Aid.	
	£	£	
3. For salaries and expenses of the Post Office services, the expenses of Post Office savings banks, and Government annuities and insurances, and the collection of the Post Office revenue	8,843,605	138,440	
4. For the expenses of the Post Office packet service	773,015	174,474	
5. For salaries and working expenses of the Post Office telegraph service	3,770,330	86,437	
TOTAL REVENUE DEPARTMENTS - £	16,220,533	468,101	

CHAPTER 58.

An Act to amend the Law relating to Tithe Rentcharge in Ireland. [8th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1.) Where by virtue of an order under section thirty-two of the Irish Church Act, 1869, or section seven of the Irish Church Act, 1869, Amendment Act, 1872, any land is charged for fifty-two years with an annual sum calculated at the rate of four pounds nine shillings per cent. on the purchase money of any tithe rentcharge, such annual sum shall continue to be paid until forty-five payments thereof from the date at which it commenced have been made and no longer.

Amendment of law as to period for payment of instalments of purchase money of tithe rentcharge.
32 & 33 Vict. c. 42.
35 & 36 Vict. c. 90.

(2.) Where by virtue of any like order any land is charged for a less number of years, at an equivalent annual sum so as to discharge the principal and interest of any such purchase money in a less number of years, such annual sum shall continue to be paid until such less number of payments thereof from the date at which it commenced, as will pay off the purchase money on the assumption that the annual sum so charged included interest at the rate of three pounds ten shillings per cent. per annum, have been made and no longer. •

2.—(1.) As soon as possible after the passing of this Act the Land Commission shall ascertain, from the appendices to their reports as presented to Parliament in pursuance of section fifty-five of the Land Law (Ireland) Act, 1881, by what amount in each county during the period commencing with and including the year covered by the annual report dated the twentieth day of September one thousand eight hundred and eighty-six, and ending

Ascertainment and publication of percentage of variation in judicial rents.
44 & 45 Vict. c. 49.

with that presented last before the passing of this Act, the rents of holdings in respect of which judicial rents have been fixed for a first statutory term, whether by order or by agreement, have, for the entire of such period, been varied by the fixing of such judicial rents, and shall certify the average percentage which such variation represents.

(2.) The Land Commission shall similarly ascertain and certify for each county in respect of every subsequent period of fifteen years the average percentage of variation of judicial rents payable during a second or subsequent statutory term as compared with the judicial rents payable during the last preceding statutory term.

(3.) The Land Commission shall publish their certificates under this section in such manner for giving information to all persons interested, as they think most convenient.

(4.) A copy of every certificate of the Land Commission under this section shall be published in the "Dublin Gazette."

(5.) The production of a printed copy of the "Dublin Gazette," purporting to be published by the Queen's authority, and containing the publication of any certificate of the Land Commission under this section, or of a sealed copy issued by the Land Commission of any such certificate, shall be evidence of the contents of such certificate, and of the date thereof, and that it has been duly made.

(6.) The Land Commission shall keep a record in their office of all certificates made by them under this section.

Variation
of tithe
rentcharges.

3.—(1.) During the period of fifteen years, dating from the first day of November next after the passing of this Act, the sum payable in respect of every gale accruing due after that date of any tithe rentcharge payable out of hereditaments situate in any county shall be deemed to be varied, from the amount at which it stood on the twenty-second day of August one thousand eight hundred and eighty-four, in accordance with the average percentage of variation of rents declared by the certificate of the Land Commission to have taken place with respect to such county by the fixing of judicial rents for a first statutory term, and shall be payable accordingly.

(2.) During each subsequent period of fifteen years the like variation shall be deemed to be made in all tithe rentcharges from the amount at which they respectively stood immediately before the commencement of such period, in accordance with the average percentage of the variation of judicial rents certified by the Land Commission for the period of fifteen years terminating last before the commencement of each such first-mentioned period respectively and all tithe rentcharges shall be payable accordingly.

(3.) After the passing of this Act no variation shall be made in any tithe rentcharge, save in accordance with the provisions of this Act.

Exclusion of
35 & 36 Vict.
c. 90, s. 7,
in the case of
certain tithe
rentcharge.

4. So much of section seven of the Irish Church Act, 1869, Amendment Act, 1872, as provides for the sale of tithe rentcharges shall not have effect in the case of any tithe rentcharge to which the last preceding section applies.

5. Any payments of tithe rentcharge made before the passing of this Act in pursuance of any order subsisting at the time of such payments of a court of quarter sessions shall be deemed valid and sufficient, notwithstanding any noncompliance with the provisions of any Act with reference to the variation of tithe rentcharges.

Validation of
previous
payments.

6.—(1.) The amount of tithe rentcharge payable by any person as from the first day of November one thousand eight hundred and ninety-eight shall be deemed to have been and shall hereafter be reduced in respect of every pound in value thereof:—

Provision
with respect
to deduction
of poor rate.
61 & 62 Vict.
c. 37.

(a) if the tithe rentcharge is payable out of hereditaments situate within a rural district, by one-half of the standard rate of poor rate certified under section forty-nine of the Local Government (Ireland) Act, 1898, as having been levied off those hereditaments; and

(b) if the tithe rentcharge is payable out of hereditaments situate within an urban district, by the whole of such standard rate so certified as having been levied off those hereditaments:

Provided that from the first half-yearly payment so reduced which accrues due next after the passing of this Act, there may be deducted in respect of every pound thereof one-half of such standard rate, if the tithe rentcharge is payable out of hereditaments situate within a rural district, and the whole of such standard rate if the tithe rentcharge is payable out of hereditaments situate within an urban district.

Provided also that if the total amount paid in respect of any tithe rentcharge accruing due after the first day of November one thousand eight hundred and ninety-eight, and before the gale day next after the passing of this Act, exceeds the amount which would have been payable if this Act had come into operation before the said first day of November, the difference may be deducted from such first half-yearly payment as aforesaid, and if such total amount is less than would have been so payable, the difference shall be paid together with such half-yearly payment.

(2.) Where the hereditaments out of which the tithe rentcharge is payable are situate partly in an urban and partly in a rural district, any question which may arise as to the portions of the tithe rentcharge which are to be deemed for the purposes of this section to be payable in respect of the parts of the hereditaments situate in the rural and urban districts respectively, shall be referred to the Land Commission, whose decision shall be final.

(3.) Section one of the Tithe Rentcharge (Ireland) Act, 1848, (which provides for deduction from rent paid in respect of tithe rentcharge) shall apply, with the necessary modifications, where tithe rentcharge is reduced by virtue of this section, and, in the application of the said section one to tithe rentcharge payable out of hereditaments situate within a rural district "one quarter" shall be substituted for "one half."

11 & 12 Vict.
c. 80.

7.—(1.) Where the hereditaments out of which any tithe rentcharge is payable are separately owned by several persons liable to

Liability of
owner to

pay proportion of tithe rentcharge.

pay the tithe rentcharge, any of such owners shall be liable only to pay such proportion of the whole tithe rentcharge as the rateable value of the hereditaments separately owned by him or them bears to the rateable value of the whole of the hereditaments out of which such tithe rentcharge is payable.

(2.) The proportionate part of a tithe rentcharge payable by any person in pursuance of the foregoing enactment, shall be recoverable from that person by the same remedies and in the same manner as if he were solely liable for the whole tithe rentcharge.

Exclusion of certain annuities and tithe rentcharge.

8.—(1.) Section one of this Act shall not apply to any annual sum charged upon land where the estate or interest therein of the person liable to pay such annual sum has, after the creation of such charge and before the thirteenth day of April one thousand eight hundred and ninety-six, been conveyed to a purchaser on a sale.

(2.) Section three of this Act shall not apply to any tithe rentcharge payable to the Land Commission out of hereditaments where the estate or interest therein of the person liable to pay such tithe rentcharge has, after the tenth day of August one thousand eight hundred and seventy-two and before the twelfth day of May one thousand eight hundred and ninety-nine, been conveyed to a purchaser on a sale.

(3.) Where the estate or interest conveyed was less than the fee simple this section shall not apply after the determination of such less estate or interest.

(4.) For the purpose of showing that this section does not apply a statutory declaration, or such other evidence as the Land Commission may require, shall be furnished to that Commission, and be *prima facie* evidence.

(5.) The expression "sale" in this section does not include a mortgage, or a marriage or other family settlement or arrangement, or a sale in any court to the owner of the land sold.

Exclusion of 59 & 60 Vict. c. 47. s. 37 (1), in certain cases.

9. Subsection (1) of section thirty-seven of the Land Law (Ireland) Act, 1896 (which dispenses with the consent of the Treasury to the redemption of tithe rentcharge as therein mentioned), shall not have effect in the case of any tithe rentcharge to which section three of this Act applies.

Definitions.

10. In this Act, unless the context otherwise requires,—

The expression "the Land Commission" means the Irish Land Commission; and

The expression "tithe rentcharge" means a rentcharge in lieu of tithes, whether payable to the Land Commission or to any lay impropriator or other person.

Short title and extent of Act.

11. This Act may be cited as the Tithe Rentcharge (Ireland) Act, 1900, and shall extend to Ireland only.

Repeal.

12. The Acts specified in the schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

SCHEDULE.

ACTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
1 & 2 Vict. c. 56.	The Poor Relief (Ireland) Act, 1838.	Section seventy-six.
1 & 2 Vict. c. 109.	The Tithe Rentcharge (Ireland) Act, 1838.	Section thirty-two.

CHAPTER 59.

An Act to amend Part III. of the Housing of the Working Classes Act, 1890. [8th August 1900]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Where any council, other than a rural district council, have adopted Part Three of the Housing of the Working Classes Act, 1890 (in this Act referred to as "the principal Act"), they may, for supplying the needs of their district, establish or acquire lodging houses for the working classes under that Part outside their district.

Exercise of powers outside district.

2.—(1.) The council of any rural district may, with the consent of the county council, adopt Part Three of the principal Act, either for the whole of their district or for any contributory place or places therein.

Adoption of Part Three of Act by rural district council. 53 & 54 Vict.

(2.) In giving or withholding their consent under this section, the county council shall have regard—

c. 70.

(a) to the area for which it is proposed to adopt the said Part; and

(b) to the necessity for accommodation for the housing of the working classes in that area; and

(c) to the probability of such accommodation being provided without the adoption of the said Part; and

(d) to the liability which will be incurred by the rates, and to the question whether it is, under all the circumstances, prudent for the district council to adopt the said Part.

(3.) The principal Act is hereby repealed to the extent mentioned in the third column of the schedule to this Act.

53 & 54 Vict. d. 70.